

COURSE PLAN

UPES/Course Plan/Ver 11/ Effective July 2026

School of Law

Name of the Faculty	Apoorva Sharma
Designation	Assistant Professor
Cluster	Law & Management
Program	BA, LL.B. (Hons.)
Course	Code of Civil Procedure & Limitation Act
Course Code	CLCC3035
No. of Credits	4
Semester	V
Session	July – December 2026
Academic Year	2026 – 2027

Signature of Faculty Member

Name: Apoorva Sharma

Designation: Assistant Professor

Date: _____

Signature of Cluster Head

Name: Dr. Shambhavi Sinha

Designation: Associate Professor

Date: _____

COURSE PLAN

Prerequisite	Code of Civil Procedure & Limitation Act	
Credit	4	
Lecture	Tutorial	Practical
4	0	0

A. The expected Program Outcome are:

PO1	Students will demonstrate conceptual knowledge in the core areas of law.
PO2	Students will effectively apply their learnings to practical legal issues.
PO3	Students will be able to exhibit effective legal professional skills, employing oral and written communication, legal research, analysis, rationalization and critical thinking.
PO4	Students will demonstrate ability to evolve alternative solutions from dynamic socio-economic and techno-legal perspectives.
PO5	Students will demonstrate desirable qualities to be employable in the relevant market.
PO6	Students will show sensitivity towards ethical, moral and social issues arising in their professional career.
PO7	Students will exhibit commitment, teambuilding, networking, leadership and lifelong learning skills to excel in legal world.

B. The expected Course Outcomes are:

CO 1	The students will be able to explain the basic principles, concepts and interpret procedural aspects of the Civil laws in India.
CO 2	The students will be able to apply their understanding of different stages in civil litigation to effective practice in the civil legal field.
CO 3	The students will be able to analyze the hierarchical structure of Civil Courts in India and evaluate the various stages involved in suit filing, drafting, hearing, and execution proceedings.
CO 4	The students will be able to evaluate the importance of the Law of Limitation by critically examining how it benefits those who are proactive in asserting their rights rather than those who delay or neglect them.

C. CO-PO Relationship Matrix:

Indicate the relationships by 1- Slight (low) 2- Moderate (Medium) 3-Substantial (high)

Program Outcomes Course Outcomes	PO1	PO2	PO3	PO4	PO5	PO6	PO7
CO 1	3	3	2	1	2	1	-
CO 2	3	1	3	2	2	1	-
CO 3	3	3	3	1	2	1	-
CO 4	3	3	2	-	1	1	-
Average	3	2.5	2	1	1.5	1	-

Course Outcomes Assessment Plan:**a) Mapping of Course Outcomes with Assessment Tools:**

Components	Quiz 20 Marks	Class Test I 20 Marks	Group Presen tation 30 Marks	Submis sion of draft using AI tools 10 Marks	Viva Voce 20 Marks	Mid Sem 100 Marks	End Sem 100 Mark s
Course Outcomes							
CO 1	✓				✓	✓	✓
CO 2		✓			✓	✓	✓
CO 3			✓		✓	✓	✓
CO 4				✓	✓	✓	✓

RUBRICS FOR INTERNAL ASSESSMENT

S. No	Component	Marks (100)	Rubrics
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1.	Quiz (LMS Based, Online)	20	20 questions- 1 mark each. Tentative date/schedule- 2 nd week of November Note- 2 days prior notice shall be given.
2.	Class Test 1	20	- One Concept-based question. - One Problem based analytical question. Date of Test (Tentative): 15th September 2026 Note- 2 days prior notice will be given.
3.	Group Presentation	30	- Content & Knowledge – Information is accurate, relevant, and demonstrates understanding. - Organisation – Presentation has a clear introduction, logical flow, and conclusion. - Delivery & Communication – Speaks clearly, confidently, and engages the audience. - Teamwork – All members participate equally and coordinate effectively. - Visual Aids – Slides or other materials are clear, attractive, and support the presentation. - Time Management – Presentation is completed within the allotted time. Allocation- First week of August. Note- One day prior notice will be given. No request regarding change in date/time shall be considered. Mode- Offline- 30th September 2026 (Completion)
3.	Submission of draft using AI tools	10	- Accuracy of CPC provisions - Relevance and quality of AI prompt - Structure and formatting of the draft - Legal reasoning and application - Critical review and refinement of AI output - Originality and student contribution - Clarity and precision of language - Proper citation/referencing (if applicable) - Ethical and responsible use of AI * Overall quality and completeness of the draft. Submission date- 20th November, 2026
4.	Viva Voce	20	7 to 10 questions to assess the knowledge of the student on the pre-decided topics. Date of Viva Voce: 3rd week of November, 2026

b) Assessment Plan and Analysis:

	Assessment Tools	Planned	Actual	Highest (Score)	Lowest (Score)
CIA	Quiz	2 nd Week of November			
	Class Test	15 th September 2026			
	Group presentation	Throughout the semester			
	AI based draft Submission	20 th November 2026			
	Viva Voce	3rd week of November			
Mid Term Exam	Pen-Paper-Theory Mode	05.10.2026 – 10.10.2026			
End Term Exam	Pen-Paper-Theory Mode	08.12.2026 – 24. 12.2026			

c) Office Hours:

S. No	Faculty Name	Subject	Office Hours	Days	Location (Seating)
1.	Apoorva Sharma Apoorva.sharma@ddn.upes.ac.in	Civil procedure code and Limitation Act	9 am – 10 am	Monday & Wednesday	(K 2304)

F. Course Syllabus Template:

Unit Number	Content
Unit I	Introduction-General Concepts and definition, Parties, and place of Suit Introduction to the Code of Civil Procedure, 1908, nature and objectives of the CPC, civil courts and civil suits, jurisdiction, important definitions under the CPC, plaintiff and defendant, necessary and proper parties, institution of suits, and rules relating to the place of suing under Sections 15–20 of the CPC.
Unit II	Rules of Pleading Parties to suits (Order I), frame of suit (Order II), recognised agents and pleaders (Order III), institution of suits (Order IV), issue and service of

	summons (Order V), pleadings generally (Order VI), plaint (Order VII), written statement, set-off and counterclaim (Order VIII), appearance of parties and consequences of non-appearance (Order IX), examination of parties by the court, admissions and denials, and ascertainment of matters in controversy (Order X).
Unit III	General Provisions of Trial, Interim Orders Conduct of civil trial, appearance and examination of witnesses, hearing of suits, affidavits, judgment and decree, costs, withdrawal and compromise of suits, commissions, interim orders, temporary injunctions, interlocutory orders, arrest and attachment before judgment, appointment of receivers, and general principles governing trial proceedings and interim relief under the Code of Civil Procedure, 1908.
Unit IV	Judgment and Decree Meaning and essentials of judgment and decree, distinction between judgment, decree and order, types of decrees, preparation and contents of judgment and decree, interest, costs, correction of clerical and arithmetical errors, review of judgments, and enforcement of decrees under the Code of Civil Procedure, 1908.
Unit V	Appeal, Reference, Review and Revision Meaning and scope of appeals, first appeal, second appeal, appeals from orders, appeals to the Supreme Court, reference, review of judgments, revision by the High Court, powers of appellate and revisional courts, grounds for appeal, review and revision, and distinction between appeal, reference, review and revision under the Code of Civil Procedure, 1908.
Unit VI	Execution Proceedings Meaning and object of execution, execution of decrees and orders, execution court, parties to execution, modes of execution, attachment and sale of property, arrest and detention of judgment-debtor, resistance to execution, and basic principles governing execution proceedings under the Code of Civil Procedure, 1908.
Unit VII	Law of Limitation- General Introduction, Definitions

	Introduction to the Limitation Act, 1963, object and purpose of the law of limitation, applicability of the Act, bar of limitation, prescribed period, computation of limitation, important definitions under the Act, and basic principles governing limitation in civil proceedings.
Unit VIII	Substantive Provisions of Limitation Act, 1963- sections- 4 to 11 Expiry of prescribed period when the court is closed (Section 4), extension of prescribed period in certain cases (Section 5), legal disability (Sections 6–8), continuous running of time (Section 9), suits against trustees and their representatives (Section 10), and suits on contracts entered into outside the territories to which the Act extends (Section 11).

COURSE PLAN DELIVERY

UNIT – I Introduction-General Concepts and definition, Parties, and place of Suit

Session Plan		Actual Delivery			
Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
1	Introduction and discussion on course content, Internal assessment components and basic overview of Civil Procedure Code, 1908	1			CO1
2	Definition of important terms-Order, Decree, Judgment, Decree holder, Judgment debtor	2			CO1
3	Definition of important terms: Mesne profit, Restitution, Caveat	3			CO1
4	Res-sub judice	4			CO1, CO 2, 3
5	Res-Judicata	5			CO1, CO 2, 3
6	Res-Judicata Exceptions	6			CO1, CO 2, 3
7	Foreign Judgment – Enforcement, Place of Suit	7			CO1, CO 2
8	Parties of the suit	8			CO1, CO 2
9	Kinds of Jurisdiction	9			CO1, CO 2
10	Summons and Framing of Suits	10			CO1, CO 2

COURSE PLAN DELIVERY

UNIT – II Rules of Pleading

Session Plan		Actual Delivery			
Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
11	Plaint and Written Statement: Particulars,	11			CO 2, CO 3
12	Plaint and Written Statement-cont'd	12			CO 1, CO 2, CO 3, CO 4
13	Plaint and Written Statement-cont'd	13			CO 2, CO 3, CO 4
14	Rules of Pleading, Signing and Verification, Amendment of pleading	14			CO 2, CO 3
15	Set off	15			CO 1, CO 2, CO 3
16	Counter-Claim	16			CO 2, CO 3
17	Framing of Issues	17			CO 2, CO 3
18	Order 14	18			CO 2, CO 3

COURSE PLAN DELIVERY

UNIT – III General Provisions of Trial, Interim Orders

Session Plan		Actual Delivery			
Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
19	Overview of Stages of Civil Proceedings	19			CO1, CO 2

20	Overview of Stages of Civil Proceedings- contd.	20			CO 2
21	Examination of Parties by the Court on the first hearing	21			CO 3
22	Provisions of ADR (Order 10 r/w Section 89)	22			CO 3, CO 4
23	Discuss of Case Laws on ADR- Section 89	23			CO 1, CO 2
24	Discover and Inspection, Admission of documents	24			CO 2
25	Hearing of the Suit and examination of witnesses	25			CO 2, CO 3
26	Interim Orders, Commissions Section 75-78 r/w order 26, Receiver (Order 40)	26			
27	Arrest before Judgment (Order 38 Rules 1-4) Attachment before judgment (Order 38 Rules 5-13)	27			
28	Temporary Injunctions (order 39 Rules 1-5)	28			
29	Interlocutory Order	29			
30	Interpleader Suit and Inherent Powers of Court	30			

COURSE PLAN DELIVERY

UNIT – IV Judgment and Decree

Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
31	Pronouncement of Judgment	31			CO 1, CO 2
32	Decree- Types of Decree	32			CO 2, CO 3
33	Difference between Decree, Order and Judgment	33			CO 3
34	Alteration of Judgment	34			CO 1, CO 2

COURSE PLAN DELIVERY

UNIT – V Appeal, Reference, Review and Revision

Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
35	Appeal- Introduction	35			CO 3, CO 4
36	Appeal (contd.)	36			CO 1, CO 2, CO 3
37	Memorandum of appeal	37			CO 1, CO 2, CO 3

38	First appeal	38			CO 3, CO 4
39	Substantial Question of Law	39			CO 1, CO 2, CO 3
40	Second appeal	40			CO 3, CO 4
41	Powers of the Appellate Court	41			CO 3, CO 4
42	Revision, Review, Reference	42			CO 3, CO 4
43	Revision, Review, Reference- (contd.)	43			CO 3, CO 4
44	Revision, Review, Reference- (contd.)	44			CO 3, CO 4

COURSE PLAN DELIVERY

UNIT – VI Execution Proceedings

Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
45	Execution- Meaning and Concept	45			CO 1, CO 2, CO 3
46	General Principles of Execution	46			CO 2, CO 3

47	Modes of Execution	47			CO 2, CO 3
48	Modes of Execution (Contd.)	48			CO 3, CO 4
49	Powers of executing court	49			CO 3, CO 4
50	Powers of executing court (Contd.)	50			CO 1, CO 2
51	Stay of execution	51			CO 3, CO 4
52	Stay of execution (Contd.)	52			CO 2, CO 3
53	Garnishee Order	53			CO1

COURSE PLAN DELIVERY

UNIT – VII Law of Limitation- General Introduction, Definitions

Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO Covered
54	Jurisprudential Aspect and Concept of Law of Limitation	54			CO 1

55	Bar of Limitation, Period of Limitation	55			CO 2, CO 3
56	Important Definitions	56			CO 1, CO 2
57	Condonation of Delay	57			CO 2, CO 3

COURSE PLAN DELIVERY

UNIT – VIII Substantive Provisions of Limitation Act, 1963- sections- 4 to 11

Lecture	Topics to be Covered	Lecture	Date	Topics Covered	CO covered
58	Bar of Limitation, Period of Limitation (Contd.)	58			CO 1, CO 2
59	Exceptions Bar of Limitation (S. 4- 5)	59			CO 3, CO 4
60	Exceptions (S. 6- 11)	60			CO 3, CO 4

PERIODIC MONITORING

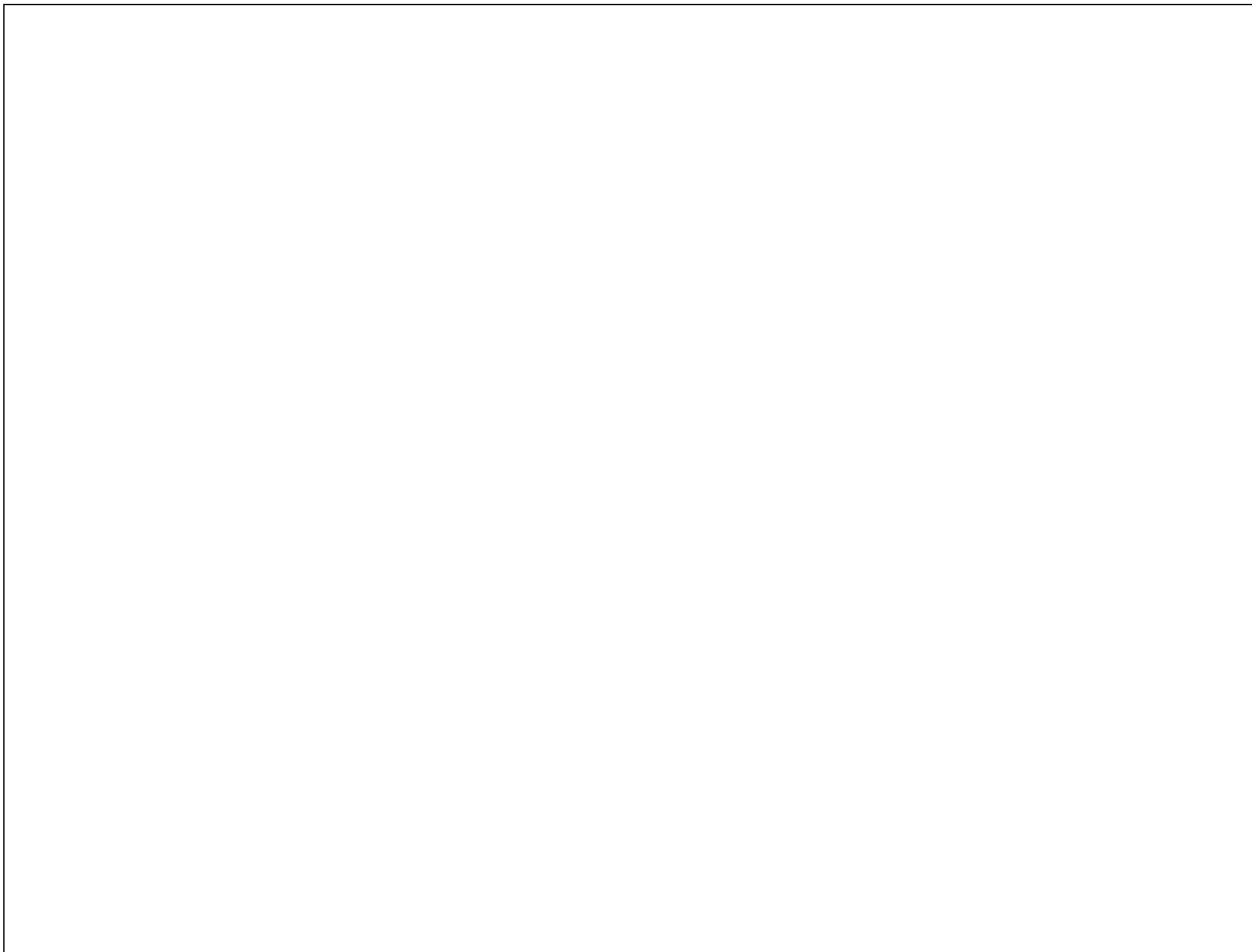
Actual date of completion and remarks, if any

Components		From	To	From	To	From	To
Duration (Mention from and to dates)		3 rd Aug 26	15 th Sep 26	16 th Sep 26	20 th Oct 26	21 st Oct 26	2 nd Dec 26
Percentage of Syllabus covered		46%		76%		100%	
Lectures	Planned	28		46		18	
	Taken						
Tutorials	Planned						
	Taken						
Test/quizzes	Planned	1		1		1	
	Taken						
	CO's Addressed	CO 1		CO 2		CO 4	
	CO's Achieved						
Assignments	Planned	1		1		1	
	Taken						
	COs Addressed	CO 1, CO 2		CO 3		CO 3, CO 4	
	COs						

Observations (If any) _____

Signature of Faculty
Date

Signature of Head
Date



PLANNING FOR REMEDIAL CLASSES

Sl. No.	Name of Student	Roll No.	Sap ID	Mid Sem Marks	Remedial Classes Held						Class test based on Remedial Classes	End Sem Marks	Improvement (Y/N)
					Date								
					Venue								
					Time								

Signature of Faculty

Signature of Head

A. Target

Target	50% (marks)
Level – 1	40% (population)
Level – 2	50% (population)
Level – 3	60% (population)

B. Method of Evaluation*

UG
Quiz, Class Tests, Case Study & Viva – Voce (50%)
Mid Semester Examination (20%)
Semester End Examination (30%)

C. Passing Criteria:

Scale	UG
Out of 10 Point Scale	SGPA – “5.0” in each semester CGPA – “5.0” Min. Individual Course Grade – “C” Course Grade Point – “4.0”

*for UG, passing marks are 35/100 in a paper (Composite)

D. References:

Textbooks	Justice CK Takwani: The Code of Civil Procedure with Limitation Act 1963, Eighth Edition, EBC Publication, 2024
	Mulla: The Key to Indian Practice (A summary of Code of Civil Procedure), 11 Edition, Lexis Nexis
	Dr. Avtar Singh: The Code of Civil Procedure, Central Law Publications, 5th Edition, 2025

Web Resources	https://www.jstor.org/
	https://www.lexisnexis.com
	https://www.scconline.com
	https://home.heinonline.org/
Articles in Journals	Effectiveness of Section 89 of Code of Civil Procedure, Ojasav Chitranshi & Daksha Bairwa, 2021, HeinOnline
	Doctrine of Res Judicata and Maintainability of Suits – A Study, Mukund Sarda, 2-16, SSRN
	Res Judicata as Requisite for Justice, Kevin M. Clermont, January 2015, SSRN
	The Inherent Power of the Court: A discussion under Civil Procedure Code, Bishal Deb, August 2021, Research Gate
	Summons under the Civil Procedure Code, 1908, Mehta, October 2021, SSRN
Reference Books	Sudipto Sarkar & V.R. Manohar, Sarkar's Code of Civil Procedure (2 Vols), LexisNexis India (11th Edn)
	R. Malik, Ganguly's Civil Court, Practice and Procedure, Eastern Law House, 2012
	P. Tandon, Code of Civil Procedure, Allahabad Law Agency, 2005
	Gundaji Satwaji Shinde v. Ram Chandra Bhikaji Joshi, AIR 1979 SC 653
	Indian Bank v. Maharashtra State Cooperative Marketing Federation Ltd, AIR 1998 SC 1952 13
	State of U.P. v. Nawab Hussain, AIR 1977 SC 1680 20
	Chunilal V. Mehta v. Century Spinning and Manufacturing Co. Ltd., AIR 1962 SC 1314
	Haridas Das v. Smt. Usha Rani Banik, 2006 (3) SCALE 287
	Mahant Ram Dass v. Mahant Ganga Dass, AIR 1961 S.C. 882
	Jai Jai Ram Manohar Lal v. National Building Material Supply Co., AIR 1969 S.C. 1267

Case List	M/s Ganesh Trading Co. v. Moji Ram, AIR 1978 SC 484
	Dalip Kaur v. Major Singh, AIR 1996 P & H 107
	Saleem Bhai v. State of Maharashtra, AIR 2003 SC 759
	Sangram Singh v. Election Tribunal, AIR 1955 SC 425
	Monohar Lal v. Seth Hira Lal AIR 1962 SC 527
	Dalpat Kaur v. Prahlad Singh, AIR 1993 SC 276
	Collector, Land Acquisition, Anantnag v. Katiji, AIR 1987 SC 1353
	State of Nagaland v. Lipok AO, (2005) 3 SCC 752
	State of Madhya Pradesh v. Bherulal, (2020) 10 SCC 654
	Note- List of cases is tentative. Faculty is free to include other important cases as well.
MOOCs	NA
AI Tools	ChatGPT, Claude, Notebook LM

SUGGESTIONS FOR FACULTY

- Faculty should keep track of the students with low attendance and counsel them regularly.
- The course coordinator will arrange to communicate the short attendance (as per UPES policy) cases to the students and their parents monthly.
- Topics covered in each class should be recorded in the table of RECORD OF CLASS TEACHING (Suggested Format).
- Internal assessment marks should be communicated to the students twice in a semester.
- The file will be audited by respective IQAC members for theory as well as for lab as per schedule.
- The faculty is required to maintain these files for a period of at least three years.
- This register should be handed over to the head of department, whenever the faculty member goes on long leave or leaves the Colleges/University.
- For labs, continuous evaluation format (break-up given in the guidelines for result preparation in the same file) should be followed.
- The department should monitor the actual execution of the components of continuous lab evaluation regularly.

- Instructors should maintain record of experiments conducted by the students in the lab weekly.
- Instructors should promote students for self-study and to make concept diary, due weightage in the internal should be given under faculty assessment for the same.
- Course outcome assessment: To assess the fulfilment of course outcomes two different approaches have been decided. Degree of fulfillment of course outcomes will be assessed in different ways through direct assessment and indirect assessment. In Direct Assessment, it is measured through quizzes, tests, assignments, Mid-term and/or End-term examinations. It is suggested that each examination is designed in such a way that it can address one or two outcomes (depending upon the course completion). Indirect assessment is done through the student survey which needs to be designed by the faculty (sample format is given below) and it should be conducted towards the end of course completion. The evaluation of the achievement of the Course Outcomes shall be done by analyzing the inputs received through Direct and Indirect Assessments and then corrective actions suggested for further improvement.
- At the completion of the course, course attainment and other documents should be shared with the program coordinator for computation of Program attainment.
- At the completion of the course Faculty members are suggested to share the innovative teaching techniques along with the course plan (format provided by IQAC).
- Faculties are encouraged to share the master/expert classes evidence (as per the event report format)
- Faculties are also encouraged to include MOOCs, SWAYAM any other online content and share the evidence of MOOCs courses /online courses referred (as per the event report format).
- Faculties are encouraged to share the evidence related to interventions or initiatives focusing the unique/slow and Fast Learners along with Course Completion files.

INDIRECT ASSESSMENT

Sample format for Indirect Assessment of Course outcomes:

NAME:
<i>ENROLLMENT NO:</i>
SAP ID:
COURSE:
PROGRAM:

Please rate the following aspects of course outcomes of-----.

Use the scale 1-3*

Course Outcomes	Statement	1	2	3

CO1	Students will be able to explain the basic principles, concepts, and doctrines governing the law of evidence.			
CO2	Students will be able to apply the provisions relating to oral, documentary, and electronic evidence in legal situations.			
CO3	Students will be able to analyze the rules governing relevancy of facts, admissions, confessions, burden of proof, and witness testimony.			
CO4	Students will be able to evaluate evidentiary issues and judicial appreciation of evidence in real-life cases and legal disputes.			

